

address where Defendant was served with process by virtue of substitute service.

The Motion is unopposed.

Background

On 12/5/23, counsel for Plaintiff filed a Default Judgment identifying the Plaintiff as a corporation, namely, Espinoza Bail Bonds, Inc. Subsequently, per Plaintiff's Motion and accompanying declaration, counsel for Plaintiff learned that Plaintiff's correct name is Jose Espinoza, dba Espinoza Bail Bonds.

Analysis

California Code of Civil Procedure §187 provides that a California court may use "all the means necessary" when the course of proceeding is not specifically provided for by the Code of Civil Procedure or other statute to carry its jurisdiction into effect:

“... When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code.” Code of Civil Procedure Section 187.

California Code of Civil Procedure § 473 (d) further provides that the court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

In the instant matter, the entry of Plaintiff as a corporate entity in the Judgment was clearly a clerical error. This court will exercise discretion and grant Plaintiff leave to amend the Judgment and list Plaintiff by the appropriate name.

Disposition

Plaintiff's Motion is granted.

Plaintiff is to file a proposed order and judgment.

3. 9:00 AM CASE NUMBER: L24-08852
CASE NAME: TWO JINN, INC. VS. SOPHIA GARCIA

***HEARING ON MOTION IN RE: PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS;**

FILED BY: TWO JINN, INC.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 12/4/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, included as Attachment One to Exhibit A of the Declaration filed 8/28/25, were deemed to be true by the court, ("Deemed Admitted Order").

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 8/28/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as the cause of action, based on the allegation that Defendant became indebted in the amount of \$7,115, over the issuance of a bail bond.

Defendant's Answer denies the allegations of the Complaint.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions served on Defendant which was granted by the Court. The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$7,115 in principal, plus interest, costs, and attorneys' fees, for a total amount of \$12,273.56 (Memos on costs and fees were filed on 8/23/25 and 2/13/26.)

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall submit a proposed order and judgment.

4. 9:00 AM CASE NUMBER: L24-09985
CASE NAME: WELLS FARGO BANK, N.A. VS. JENNIFER RODA
***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE**
FILED BY: WELLS FARGO BANK, N.A.
TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

Plaintiff also submitted a memo of costs and fees, totaling \$1,365, and filed on 2/17/26.

In the order filed 12/24/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions ("Deemed Admitted Order"). All requests for admission, provided in the declaration filed 9/25/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Deemed Admitted Order, as well as the declaration filed by the Plaintiff on 9/25/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the